

File No.: EXP202408622

RESOLUTION OF THE APPEAL FOR RECONSIDERATION

Examined the appeal for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Presidency of the Spanish Agency for Data Protection dated February 24, 2025, and based on the following

FACTS

FIRST: On February 24, 2025, a resolution was issued by the Presidency of the Spanish Agency for Data Protection in file EXP202408622, in which it was agreed to accept the withdrawal of the claim for the exercise of rights filed by A.A.A. against B.B.B.

SECOND: The resolution now being appealed was duly notified to the appellant on March 7, 2025, as evidenced by the acknowledgment of receipt in the file.

In the resolution now being appealed, it was indicated that

“In the case analyzed here, since the claimant has expressed their intention to withdraw their claim, and considering the anti-formalism principle regarding withdrawal as contemplated in Article 94.1 of the LPACAP, as well as the fact that no affected third parties have appeared in the procedure, it is appropriate to accept said withdrawal under the terms of Article 94.4 of the aforementioned regulation.”

THIRD: The appellant submitted on February 24, 2025, to this Spanish Agency for Data Protection, an appeal for reconsideration, in which they state the following.

“Optional Appeal for Reconsideration due to negligence in File No.: EXP202408622. In blatant negligence, this AEPD has notified me today, February 24, 2025, of the resolution in File No.: EXP202408622, alleging that I had withdrawn the claim on December 20, 2024. This is a fallacy and absolute error, given that on December 20, 2024, I withdrew another initial record for another claim against (...). I am attaching the record from December 20, 2024. Therefore, I urge the immediate reinstatement of File No.: EXP202408622, which was negligently closed.”

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant regarding the fact that they withdrew another claim submitted to this Agency, not the one that gave rise to the procedure whose resolution is now being appealed, the documentation in the file has been reviewed again and it has been verified that, due to an administrative error, the withdrawal letter was associated with the present file.

III

Conclusion

In the present case, from the examination of the statements of the appellant and the review of the documentation in the present file, it has been verified that there is no record of withdrawal of the claim that originated the procedure whose resolution is now being appealed, and, consequently, it is appropriate to uphold the appeal for reconsideration filed, annulling the resolution issued on February 24, 2025, accepting the withdrawal, and reverting the proceedings of the rights procedure to the stage it was at.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the

appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

In cases of dismissal by administrative silence, the express resolution after the expiration of the term will be adopted by the Administration without any binding to the meaning of the silence, as provided in Article 24.3 of the same law.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having regard to the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO GRANT the appeal for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on February 24, 2025, in file EXP202408622, by which the withdrawal was accepted.

SECOND: TO RETURN the proceedings of the rights procedure to the stage it was at, so that its processing may continue.

THIRD: TO NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned legal text.

185-020125

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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